

**Court No. - 3**

**Case :-** WRIT - C No. - 11135 of 2022

**Petitioner :-** M/S Prasoon Kumar And Prashant Kumar Cold Storage And Another

**Respondent :-** State Of U P And 5 Others

**Counsel for Petitioner :-** P.K. Upadhyay, Kalpna Upadhyay

**Counsel for Respondent :-** C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Jayant Banerji, J.**

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

*"A. Issus a writ, order or direction in the nature of certiorari to quash the citation notice dated 09.08.2021 (**Annexure no. 4**) issued by respondents.*

*B. Issus a writ, order or direction in the mandamus directing the respondents not to recover the amount of Rs. 20,40,213/- pursuant to the citation notice dated 09.08.2021 as well as Rs.22,42,089/- mentioned in the bill dated 13.08.2021 issued by respondents.*

*C. Issus a writ, order or direction in the nature of mandamus directing the respondent no.6 to decide the application dated 29.06.2021 (**Annexure no. 5**) filed by the petitioners and further directing to respondents to connect the electricity of the petitioner which is illegally disconnected 01.03.2022 by the respondent no. 6 of the petitioner in accordance with law within a stipulated period."*

Learned counsel for the respondent No.4, 5 and 6/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.6., within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.6 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

**Order Date :-** 27.5.2022

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